

25NNCV04898 25NNCV04898

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-09-24

Motion: PLAINTIFF'S MOTION FOR ATTORNEYS' FEES AND COSTS

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Case Number: 25NNCV04898 Hearing Date: September 24, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JERRY
EASLEY,

Plaintiff(s),

vs.

GENERAL
MOTORS, LLC, et al.,

Defendant(s).

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CASE NO.: 25NNCV04898

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION FOR ATTORNEYS' FEES AND COSTS

Dept.

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8:30

a.m.

September

24, 2026

)

Plaintiff Jerry Easley moves for an award of attorneys' fees, costs, and expenses pursuant to Civil Code § 1794, subdivision (d). Defendant General Motors, LLC ("Defendant") did not oppose the motion.

Under the Song-Beverly Consumer Warranty Act ("SBA"), prevailing buyers have the burden to show that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amounts. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 998 (Doppes).) The SBA requires the trial court to make an initial determination of the actual time expended; and then to ascertain

whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable.” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158.) The question whether attorneys’ fees were reasonably incurred may depend on circumstances including, “factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved.” (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470. The appellate court reviews awards of attorney fees under Civil Code section 1794, subdivision (d), for abuse of discretion. (Doppes, supra, 174 Cal.App.4th at p. 998.)

Plaintiff’s counsel, Joseph A. Kaufman, requests a base lodestar of \$31,038, a 1.2 multiplier of \$6,207.60, and \$2,703.89 in costs and expenses, for a total award of \$39,949.49. Mr. Kaufman declares that his hourly rate for 2026 is \$615 and \$595 from 2023 to 2025. Other attorneys on this matter have 2.5 years’ experience and billed at hourly rates ranging from \$375 to \$395, while a paralegal with 3 years’ experience billed at hourly rates of \$175 in 2025 and \$250 in 2026.

Mr. Abraham declares that his rate is based on factors such as 23 years of litigation experience, which include decades of defense work, and his involvement in thousands of lemon law cases/claims, he is also a regular presenter and author with many presentations and publications. (Kaufman Decl., ¶ 4.) He states that his hourly rate is less expensive than many consumer-side consumer protection attorneys and has been approved in 14 cases. (Kaufman Decl., ¶ 6.)

The motion is unopposed and Defendant does not dispute the reasonableness of Plaintiff’s counsel’s hourly rates. However, the Court notes that the billing records supporting Plaintiff’s counsel’s lodestar amount includes time entries and filing expenses for “anticipated” work in reviewing and responding to any opposition motion. The motion is unopposed, therefore, the Court reduces the base lodestar by 4.5 hours (\$1,777.50) and Plaintiff’s counsel’s expenses by \$24.62, for a total reduction of \$1,802.12. The Court declines to award a multiplier because there is no showing that the case required any exceptional skill, beyond that possessed by counsel and already reflected in the hourly billing rate, or that it required Plaintiff’s counsel to turn down other work.

Accordingly, the Court GRANTS

Plaintiff's motion in part and awards \$29,260.50 in attorney fees and \$2,679.27 in expenses, for a total award of \$31,939.77.

Plaintiff to give notice.

Dated
this 24th
day of September 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.